



August 18, 2025

Ambassador Jamieson Greer
Office of the United States Trade Representative
600 17th Street, NW
Washington, DC 20006

Docket No. USTR-2025-0043

Comments on the Section 301 Investigation of Acts, Policies, and Practices of Brazil Related to Digital Trade and Electronic Payment Services; Unfair, Preferential Tariffs; Anti- Corruption Enforcement; Intellectual Property Protection; Ethanol Market Access; and Illegal Deforestation.

The National Cattlemen's Beef Association (NCBA) appreciates the opportunity to submit comments in response to the Office of United States Trade Representative (USTR) request for comments on the Section 301 Investigation into Brazil's unfair trade practices. NCBA is the oldest and largest national trade association representing the interest of U.S. cattle producers. Producer-driven and directed, the following comments reflect the policy priorities of NCBA's members established through our grassroots network, representing the vast majority of the U.S. cattle and beef industry.

Brazil Has a Significant Trade Imbalance with the United States Regarding Beef Trade

Brazil is a growing supplier of lean beef trimmings to the U.S. market and in the first six months of 2025, Brazil sold \$1.13 billion of beef to the U.S.— a 106% increase from 2024.¹ In the past five years Brazil has sold \$4.45 billion of beef to U.S. consumers.² Brazil has access to the U.S. market under the "Other Country" TRQ for beef, an annual quota of 65,000 MT that it shares with countries such as Paraguay, Ireland, Japan, and the United Kingdom. In 2024, Brazil filled the annual quota on February 27, and this year Brazil filled the annual quota on January 17. Now that the quota is full, all countries trading under that quota will pay a 26.4 percent tariff for the rest of 2025. However, Brazil also faces the additional 50 percent tariff, taking its tariff rate to 76.4 percent. Unlike the other countries under the quota, Brazil's weaker currency and lower cost of production will allow Brazil to absorb the tariff and continue to export beef to the U.S. market relatively undeterred. On the other hand, Brazil has placed numerous non-tariff restrictions on U.S. beef, and we have only managed to sell \$21 million to Brazilian consumers over the past five years.³ Through June 2025, U.S. beef exports to Brazil have totaled the paltry sum of \$424,654.⁴

NCBA Strongly Supports Holding Brazil Accountable for Unfair Trade Practices

The one-sided trade between the United States and Brazil is due in part to Brazil's complex and onerous product and labeling registration requirements that have all but closed the market to U.S. beef imports. While Brazil is not a major importer of beef, USDA estimates that 96 percent of its projected 60,000 MT

¹ U.S. Department of Commerce, <https://usatrade.census.gov/>; HS Codes 0201, 0202, 020610, 020621, 020622, 020629, 160250; January to June 2025, compared to same time period in 2024.

² U.S. Department of Commerce, <https://usatrade.census.gov/>; HS Codes 0201, 0202, 020610, 020621, 020622, 020629, 160250; calendar years 2020-2024.

³ *Id.*

⁴ U.S. Department of Commerce, <https://usatrade.census.gov/>; HS Codes 0201, 0202, 020610, 020621, 020622, 020629, 160250; January to June 2025.



beef imports come from Paraguay, Uruguay, and Argentina.⁵ The Mercosur countries have duty-free access to Brazil,⁶ and even with the temporary suspension of import tariffs on beef, the complex registration process and inconsistent testing requirements for different states across Brazil discourages Brazilian beef importers from purchasing U.S. beef. Meanwhile, Brazil has full access to a robust U.S. market with a transparent and consistent regulatory process that allows for market development and investment. NCBA encourages USTR to work with USDA to simplify the facility registration, product registration, and labeling requirements for Brazil and create a more objective and transparent set of standards for U.S. beef exports.

Brazil's Troubling Track Record for Food Safety and Animal Health

While the trade deficit should be clearly addressed, our larger concern is the questionable risk that Brazil's access poses to the health of U.S. consumers and the U.S. cattle herd. The Brazilian government has the unfortunate track record of lacking transparency and accountability with trade partners, and that has grown increasingly more evident in recent years. This is very alarming given Brazil's previous suspension for food safety violations and its history of foot-and-mouth (FMD) and atypical bovine spongiform encephalopathy (BSE).

In October 2016, Brazilian beef was granted access to the U.S. market, in what was considered a major victory for the Brazilian government. Prior to that announcement, NCBA raised major objections due to Brazil's history of food safety issues, FMD, and the highly questionable process by which Brazil was granted access including numerous violations of federal rulemaking procedures, which resulted in the publication of a GAO report calling for the establishment of objective, transparent approval processes for USDA.⁷ Brazil's beef access to the U.S. market was quickly halted a few months later.

In June 2017, USDA suspended Brazilian beef imports from the U.S. market after numerous food safety violations at U.S. ports-of-entry. According to the USDA, FSIS refused entry to 11 percent of Brazilian fresh beef products. That figure was substantially higher than the rejection rate of one percent of shipments from the rest of the world. Under increased inspection, FSIS refused entry to 106 lots (approximately 1.9 million pounds / 860 metric tons) of Brazilian beef products due to public health concerns, sanitary conditions, and animal health issues. In March 2019, President Trump hosted Brazilian President Jair Bolsonaro at the White House to discuss the future of U.S.-Brazilian economic and geo-political ties. A joint statement was issued at the conclusion of their meeting, and that statement included a reference to the potential resumption of Brazil's beef exports to the United States. Specifically, the United States agreed to schedule a technical visit by USDA-FSIS to audit Brazil's beef production safety system and market access was eventually restored in 2021.

During the Biden Administration, Brazil failed to report multiple cases of atypical BSE in compliance with international guidelines. At that time, the World Organization for Animal Health (WOAH) required the timely disclosure of atypical BSE cases. When the United States has an animal health concern, we immediately notify our trade partners and ensure them that our safeguards have worked, and potentially contaminated products have been removed from the supply chain and do not pose a risk to their consumers or livestock herds. Brazil has a reputation of not reporting animal health issues for weeks, months, and years, and the integrity of their central competent authority is highly questionable. No other trade partner with access to the U.S. market has exhibited such inconsistencies. NCBA repeatedly called for USDA to suspend Brazil's

⁵ USDA-Foreign Agricultural Service, "Brazil: Livestock and Products Semi-annual", Report No. BR2025-0004, 02/28/2025.

⁶ USDA-Foreign Agricultural Service, "Brazil Lowers Agricultural Tariffs to Fight Inflation," Report No. BR2022-0033, 05/16/2022.

⁷ "U.S. Government Accountability Office, Foot-And-Mouth Disease: USDA's Evaluations of Foreign Animal Health Systems Could Benefit from Better Guidance and Greater Transparency", Report No. GAO-17-373, 04/28/201.

market access and conduct thorough audits to verify Brazil's safety standards.⁸ After witnessing multiple atypical BSE cases in Brazil and numerous delays in reporting, USDA finally sent a letter to its Brazilian counterpart, but no further action was taken. Brazil was never held accountable despite growing outrage from the U.S. cattle sector.

Failing to hold Brazil accountable undermines the integrity of our animal health and food safety standards, and it creates a double standard for many of our trade partners who are held to a high standard by USDA. This sends the wrong message to America's trade partners. We need President Trump to take immediate action to resolve this ongoing problem.

Use Existing Authority to Suspend Beef Imports from Brazil to Provide Accountability and Transparency

NCBA greatly appreciates the tariff increase on imports from Brazil. We believe this is a good first step, but the Other Country TRQ does little to hold Brazil's beef imports in check, while it discourages imports from other trade partners like Japan, Ireland, and the United Kingdom. Tariffs alone may not be enough to hold Brazil accountable. We believe full suspension is necessary, and further restrictions must be applied until Brazil's claims of equivalency for food safety and animal health are confirmed. Unfortunately, the only time Brazil has shown a willingness to take U.S. standards seriously is when their market access was fully suspended for months and years at a time.

For this reason, NCBA continues to call for the full suspension of Brazilian beef imports until USDA can thoroughly audit and verify Brazil's safety standards for animal health and food safety. The audits should be consistent with the recommendations of the 2017 GAO Report that was published following review of Brazil's initial approval to the U.S. market.⁹ The audits must include new on-site visits, and the results of the audits should be made available to the public for comment before Brazil is re-instated to the market.

Use Existing Authorities Instead of Creating European-Style Deforestation Restrictions

In response to media coverage of fires in the Amazon, the European Union is seeking to impose new restrictions on imports of goods from Brazil and other countries where deforestation may occur. The European Union Deforestation Regulation (EUDR) requires companies to verify that imported goods, specifically beef, are not sourced from lands that have been deforested or from lands of displaced indigenous peoples. Unfortunately, the EUDR adds an additional trade barrier for U.S. beef exports that also must verify the product did not originate on deforested lands. Unfortunately, the EU's lack of legal definitions, metrics of verification, and simple guidance on implementation has raised concerns among U.S. cattle producers who have specific production systems designed for the European market. The EU has repeatedly stated it will begin enforcing EUDR at the end of 2025 even though measures of compliance are still uncertain. This will undoubtedly cause supply chain disruptions and become a de facto technical trade barrier when implemented. The theme of supply chain accountability is one that is gaining broader support in Europe, the United Kingdom, Japan, and the United States. Some legislative proposals in Congress would extend Lacey Act measures to include imported goods from deforested lands. Put simply, cattle production in the United States does not contribute to deforestation, but the European Union and others are seeking to paint all cattle production with the same brush and putting the same restrictions on U.S. beef and Brazilian beef. These restrictions are not based on science and create a dangerous precedent for increasing subjective, non-tariff trade barriers.

⁸ See attached letters from NCBA to USDA, dated 11/12/2021 and 02/27/2023.

⁹ "U.S. Government Accountability Office, Foot-And-Mouth Disease: USDA's Evaluations of Foreign Animal Health Systems Could Benefit from Better Guidance and Greater Transparency", Report No. GAO-17-373, 04/28/201.

While some U.S. policymakers may prefer to use measures like this to restrict beef imports from other countries, it would set a dangerous precedent that may be used against U.S. beef and other U.S. agricultural commodities in the future. By simply substituting deforestation with another subjective term, U.S. cattle producers become subject to more unfair trade barriers. It is important that we commit to using objective, science-based standards at all times and avoid following the European example of subjective trade.

Conclusion

Brazil has enjoyed the benefits of having market access to the United States while also enjoying the benefits of its protectionist policies. This practice must cease if Brazil desires to continue the privilege of exporting beef to the United States. More importantly, Brazil must demonstrate that it can provide a truly equivalent level of food safety and animal health. We are not concerned with Brazilian imports displacing U.S. beef in the U.S. market, but we are concerned that the lack of accountability in food safety and animal health in Brazil's cattle and beef production may undermine consumer confidence in beef consumed in the United States. While tariffs are a step in the right direction, a full suspension is the only proven method to hold Brazil accountable.

We greatly appreciate your continued support and look forward to working with you to address numerous tariff and non-tariff barriers with our trade partners.

Sincerely,

Kent Bacus
Executive Director, Government Affairs
National Cattlemen's Beef Association
ATAC for Animals & Animal Products



November 12, 2021

The Honorable Thomas J. Vilsack
Secretary of Agriculture
U.S. Department of Agriculture
1400 Independence Ave., S.W.
Washington, DC 20250

Dear Secretary Vilsack:

On behalf of America's cattle producers, the National Cattlemen's Beef Association (NCBA) writes to you with great concern over Brazil's repeated lack of timely reporting of animal health diseases to the World Organization for Animal Health (OIE), as well as its trade partners. Of particular concern are Brazil's recent incidences of atypical bovine spongiform encephalopathy (BSE) in Minas Gerais on June 11, 2021,ⁱ and in Mato Grosso on June 25, 2021.ⁱⁱ While atypical BSE cases are rare and are excluded from OIE's scope of BSE categorization, most countries immediately report atypical BSE cases as a matter of transparency and as a commitment to objective, science-based standards. In fact, the OIE clearly states that "Members must report the occurrence of animal diseases listed by the OIE, the emergence of new diseases and significant epidemiologic events within 24 hours of the event."ⁱⁱⁱ Unfortunately, the OIE was not notified of Brazil's two BSE cases until September 3, 2021 — several weeks after both cases were identified.

Many times, countries that experience BSE cases are faithful to report the unfortunate incidences within a matter of hours or days, including recent cases in the United Kingdom^{iv} and Germany.^v It is deeply concerning that Brazil was unable to report or chose not to report its two BSE cases to the OIE for several weeks. Brazil has a history of delayed reporting of BSE cases including one atypical case in 2019 (2 months),^{vi} an atypical case in 2014 (1 month),^{vii} and an atypical case in 2012 (nearly 2 years).^{viii} Brazil's history of failing to report incidences of BSE calls into question its commitment to reporting other significant diseases such as African Swine Fever, Avian Influenza, or Foot-and-Mouth Disease. It is understandable that these diseases, if reported, could pose a major threat to Brazil's exports, as noted in the OIE's guidance in reporting.

"The notification of diseases may have a negative impact on the economic performance of a country (e.g. by causing loss of export markets or discouraging tourism). However, new information technologies and practices make it difficult for governments to hide occurrences of serious notifiable diseases. A country's credibility must be based on timely and accurate notification of diseases, and this also gives the respective government a much better position to contain a disease, as compared with the situation where it first has to defend a failure to comply with international obligations. Regaining credibility in the face of public knowledge of failure to meet international rules is a costly and time-consuming exercise and can be of the highest political risk for policy-makers."^{ix}

Brazil enjoys the benefits of market access awarded to countries with the credibility of OIE's negligible risk designation — credibility that is based on the timely reporting of BSE cases to the OIE. NCBA has serious concerns that the recent events are evidence that Brazil may lack credible food safety and animal health systems, and Brazil's irresponsible behavior may pose a significant threat to the health and safety of the U.S. cattle herd.

It is out of an abundance of caution that NCBA requests USDA take immediate action to indefinitely suspend Brazil's fresh beef access to the U.S. market until USDA conducts a thorough review, including a risk assessment, of Brazil's central competent authority — the Ministry of Agriculture, Livestock, and Food Supply (MAPA), as well as its veterinary diagnostic laboratory system. NCBA recommends the indefinite suspension of fresh beef imports from Brazil until MAPA makes



systemic changes and takes necessary steps to demonstrate Brazil's commitment to an objective, science-based regulatory system that restores confidence in Brazil's participation in the global food supply.

America's cattle producers carry the scars of devastation from BSE, and we have worked diligently to restore the trust of consumers at home and abroad. We greatly benefit from market access built on science-based standards and a commitment to transparency and integrity. The consumer trust we have worked so hard to build should not be jeopardized by any country that seeks to conceal the truth about animal health or food safety concerns or lacks the ability to provide an equivalent level of safety. American cattle producers and beef consumers deserve better, and Brazil must prove itself worthy of the U.S. seal of approval.

Sincerely,



Ethan L. Lane
Vice President, Government Affairs
National Cattlemen's Beef Association

ⁱ OIE World Animal Health Information System (OIE-WAHIS), Report ID 151513, 09/06/2021.

ⁱⁱ OIE World Animal Health Information System (OIE-WAHIS), Report ID 151514, 09/06/2021.

ⁱⁱⁱ "Notification of Animal and Human Diseases – Global Legal Basis,"

https://www.oie.int/fileadmin/Home/eng/Current_Scientific_Issues/docs/pdf/notification-EN.pdf; accessed 11/02/2021.

^{iv} OIE World Animal Health Information System (OIE-WAHIS), Report ID 151716, 09/17/2021.

^v OIE World Animal Health Information System (OIE-WAHIS), Report ID 152035, 10/14/2021.

^{vi} OIE World Animal Health Information System (OIE-WAHIS), Report ID 30678, 05/31/2019.

^{vii} OIE World Animal Health Information System (OIE-WAHIS), Report ID 15148, 05/02/2014.

^{viii} OIE World Animal Health Information System (OIE-WAHIS), Report ID 12682, 12/07/2012.

^{ix} "Notification of Animal and Human Diseases – Global Legal Basis,"

https://www.oie.int/fileadmin/Home/eng/Current_Scientific_Issues/docs/pdf/notification-EN.pdf; accessed 11/02/2021.





February 27, 2023

The Honorable Thomas J. Vilsack
Secretary of Agriculture
U.S. Department of Agriculture
1400 Independence Ave., S.W.
Washington, DC 20250

Dear Secretary Vilsack:

On behalf of America's cattle producers, the National Cattlemen's Beef Association (NCBA) writes to you once again with great concern over Brazil's repeated lack of timely reporting of animal health diseases to the World Organization for Animal Health (WOAH, formerly known as OIE), as well as its trade partners. Last week, media reports indicated that Brazil discovered a case of atypical bovine spongiform encephalopathy (BSE) in the northern state of Paráⁱ and submitted test samples to the WOAH lab in Canada.ⁱⁱ At first glance, it would appear that Brazil reported the incident soon after it occurred, but the WOAH reportⁱⁱⁱ indicates that the event started on January 18, 2023 and was not confirmed until February 22, 2023 – a difference of 35 days. As of today, the causal agent test results have not been published. As we await confirmation of the causal agent test, we should ask why it took Brazil 35 days to confirm if it was a case of atypical BSE, and whether Brazil's history of delays reflects systemic issues with the central competent authority and/or diagnostic veterinary laboratory capacity, as well as whether it adequately provides an equivalent level of safety.

While atypical BSE cases are rare and are excluded from WOAH's scope of BSE categorization, most countries immediately report atypical BSE cases as a matter of transparency and as a commitment to objective, science-based standards. In fact, WOAH clearly states that "Members must report the occurrence of animal diseases listed by the OIE, the emergence of new diseases and significant epidemiologic events within 24 hours of the event."^{iv} Many times, countries that experience BSE cases are faithful to report the unfortunate incidences within a matter of hours or days, including recent cases in the Netherlands^v and Spain.^{vi} The latest Brazilian incident is another example of the extensive time lapse between the start of a BSE event and the confirmation and/or reporting of the event. As you recall, NCBA raised concerns^{vii} over Brazil's two previous incidences of atypical BSE, one in Minas Gerais on June 11, 2021,^{viii} and another in Mato Grosso on June 25, 2021.^{ix} Unfortunately, WOAH was not notified of Brazil's two BSE cases until September 3, 2021 — several weeks after both cases were identified. It is deeply concerning that Brazil was unable to report or chose not to report its two BSE cases to WOAH for several weeks.

Unfortunately, Brazil has a history of delayed reporting of BSE cases including one atypical case in 2019 (2 months),^x an atypical case in 2014 (1 month),^{xi} and an atypical case in 2012 (nearly 2 years).^{xii} Brazil's history of failing to report incidences of BSE calls into question its commitment to reporting other significant diseases such as African Swine Fever, Avian Influenza, or Foot-and-Mouth Disease. It is understandable that these diseases, if reported, could pose a major threat to Brazil's exports, as noted in WOAH's guidance in reporting. "The notification of diseases may have a negative impact on the economic performance of a country (e.g. by causing loss of export markets or discouraging tourism). However, new information technologies and practices make it difficult for governments to hide occurrences of serious notifiable diseases. A country's credibility must be based on timely and accurate notification of diseases, and this also gives the respective government a much better position to contain a disease, as compared with the situation where it first has to defend a failure to comply with international obligations. Regaining credibility in the face of public knowledge of failure to meet

international rules is a costly and time-consuming exercise and can be of the highest political risk for policy-makers.”^{xiii}

Brazil enjoys the benefits of market access awarded to countries with the credibility of WOA’s negligible risk designation – credibility that is based on the timely reporting of BSE cases to WOA. NCBA has serious concerns that the recent events are evidence that Brazil may lack credible food safety and animal health systems, and Brazil’s irresponsible behavior may pose a significant threat to the health and safety of the U.S. cattle herd.

Once again, it is out of an abundance of caution that NCBA requests USDA take immediate action to indefinitely suspend Brazil’s beef access to the U.S. market until USDA conducts a thorough review, including a risk assessment, of Brazil’s central competent authority – the Ministry of Agriculture, Livestock, and Food Supply (MAPA), as well as its veterinary diagnostic laboratory system. NCBA recommends the indefinite suspension of beef imports from Brazil until MAPA makes systemic reforms and takes necessary steps to demonstrate Brazil’s commitment to an objective, science-based regulatory system that restores confidence in Brazil’s participation in the global food supply.

America’s cattle producers carry the scars of devastation from BSE, and we have worked diligently to restore the trust of consumers at home and abroad. We greatly benefit from market access built on science-based standards and a commitment to transparency and integrity. The consumer trust we have worked so hard to build should not be jeopardized by any country that seeks to conceal the truth about animal health or food safety concerns or lacks the ability to provide an equivalent level of safety. American cattle producers and beef consumers deserve better, and Brazil must prove itself worthy of the U.S. seal of approval.

Sincerely,



Ethan Lane
Vice President, Government Affairs
National Cattlemen’s Beef Association

ⁱ “Brazil to halt beef exports to China after mad cow disease case,” Reuters, 02/22/2023.

ⁱⁱ “Brazil Suspends Beef Exports to China After Finding Mad-Cow Disease,” The Wall Street Journal, 02/23/2023.

ⁱⁱⁱ WOA – World Animal Health Information System (WAHIS), Report ID 159469, 02/23/2023.

^{iv} “Notification of Animal and Human Diseases – Global Legal Basis,”

https://www.oie.int/fileadmin/Home/eng/Current_Scientific_Issues/docs/pdf/notification-EN.pdf; accessed 02/27/2023.

^v WOA – World Animal Health Information System (WAHIS), Report ID 159092, 02/02/2023.

^{vi} WOA – World Animal Health Information System (WAHIS), Report ID 159183, 02/07/2023.

^{vii} “NCBA Urges Vilsack to Halt Brazilian Beef Imports,” NCBA Press Release, 11/12/2021.

^{viii} WOA – World Animal Health Information System (WAHIS), Report ID 151513, 09/06/2021.

^{ix} WOA – World Animal Health Information System (WAHIS), Report ID 151514, 09/06/2021.

^x WOA – World Animal Health Information System (WAHIS), Report ID 30678, 05/31/2019.

^{xi} WOA – World Animal Health Information System (WAHIS), Report ID 15148, 05/02/2014.

^{xii} WOA – World Animal Health Information System (WAHIS), Report ID 12682, 12/07/2012.

^{xiii} “Notification of Animal and Human Diseases – Global Legal Basis,”

https://www.oie.int/fileadmin/Home/eng/Current_Scientific_Issues/docs/pdf/notification-EN.pdf; accessed 02/27/2023.